

Remuneration, Conditions of Service and Facilities of Officials of Constitutional Bodies Act, 1997

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Act on Remuneration, Conditions of Service and Facilities of the Functionaries of Constitutional Bodies, 2053 (1996)

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Amending Acts

1. Some Nepal Laws Amendment Act, 2063 (2006) 2063.6.28
2. Act to Amend Some Nepal Acts for Maintaining Gender Equality, 2063 (2006) 2063.7.17
3. Republic Strengthening and Some Nepal Laws Amendment Act, 2066 (2009) 2066.1.7
4. Act Made to Amend Some Nepal Acts Relating to Remuneration of the Chairperson and Members of the National Human Rights Commission, 2072 (2015) 2072.1.12
5. Some Nepal Acts Amendment Act, 2072 (2015) 2072.11.13

Act No. 16 of the year 2053 (1996)

Act Made to Provide for Remuneration, Conditions of Service and Facilities of the Functionaries of Constitutional Bodies

Preamble: Whereas it is desirable to make provisions relating to remuneration, conditions of service and facilities of the functionaries of constitutional bodies,

Parliament has enacted this Act in the twenty-fifth year of the reign of His Majesty King Birendra Bir Bikram Shah Dev. Chapter-1

Preliminary

1. Short Title and Commencement: (1) This Act shall be called the "Act on Remuneration, Conditions of Service and Facilities of the Functionaries of Constitutional Bodies, 2053 (1996)."

(2) This Act, with respect to Sub-section (1) of Section 3, shall be deemed to have come into force from Shrawan 1, 2052 (July 16, 1995), and other Sections shall come into force immediately. 2. Definitions: Unless the subject or context otherwise requires, in this Act,-

Amended by Some Nepal Acts Amendment Act, 2072.(a) "Functionary of a Constitutional Body" means the Chief Functionary and Functionary of a Constitutional Body appointed pursuant to the Constitution of Nepal. Amended by Some Nepal Acts Amendment Act, 2072.(b) "Chief Functionary" means the Chief Commissioner of the Commission for the Investigation of Abuse of Authority, the Auditor General, the Chairperson of the Public Service Commission, the Chief Election Commissioner of the Election Commission, the Chairperson of the National Human Rights Commission, the Chairperson of the National Natural Resources and Finance Commission, the Chairperson of the National Women Commission, the Chairperson of the National Dalit

Commission, the Chairperson of the National Inclusion Commission, the Chairperson of the Indigenous Nationalities Commission, the Chairperson of the Madhesi Commission, the Chairperson of the Tharu Commission, and the Chairperson of the Muslim Commission, appointed pursuant to the Constitution of Nepal.

Amended by Some Nepal Acts Amendment Act, 2072.(c) "Functionary" means the Commissioner of the Commission for the Investigation of Abuse of Authority, the Member of the Public Service Commission, the Election Commissioner of the Election Commission, the Member of the National Human Rights Commission, the Member of the National Natural Resources and Finance Commission, the Member of the National Women Commission, the Member of the National Dalit Commission, the Member of the National Inclusion Commission, the Member of the Indigenous Nationalities Commission, the Member of the Madhesi Commission, the Member of the Tharu Commission, and the Member of the Muslim Commission, appointed pursuant to the Constitution of Nepal.

(d) "Prescribed" or "as prescribed" shall be understood as prescribed or as per prescription in an order issued by the Government of Nepal by publishing a notice in the Nepal Gazette. Chapter-2

Remuneration and Other Facilities

3. Remuneration: (1) The Chief Functionary shall be paid remuneration of six thousand seven hundred rupees per month and the Functionary shall be paid remuneration of five thousand nine hundred rupees per month.

(2) Amended by Some Nepal Laws Amendment Act, 2063.The Government of Nepal may increase the monthly remuneration and other facilities of the functionaries of constitutional bodies. While increasing remuneration and other facilities in this manner, the Government of Nepal shall publish a notice in the Nepal Gazette.

(3) If the term of office of a functionary of a constitutional body expires, or if the resignation submitted by him/her is accepted, or if he/she dies, or if he/she vacates the office for any other reason, he/she shall be paid an additional one month's remuneration in addition to the remuneration payable for the days he/she held the office.

(4) The remuneration or additional remuneration payable under Sub-section (3) to a functionary of a constitutional body shall, depending on the circumstances, be paid to him/her or to the person he/she desires. If he/she dies and has not desired any person, or the desired person is not alive, such amount of remuneration shall be paid to his/her nearest heir. 4. Housing Facility: (1) For the purpose of residence, a government house shall be arranged for the functionary of a constitutional body by the Government of Nepal.

If the arrangement of a government house is not made, or if he/she has no suitable house of his/her own in the Kathmandu Valley and has to rent a house, the functionary of the constitutional body shall be paid an amount as prescribed by the Government of Nepal per month for house rent. (2) The repair and maintenance of the government house arranged pursuant to Sub-section (1) shall be carried out by the Government of Nepal. (3) A functionary of a constitutional body residing in a private house shall be paid one thousand five hundred rupees per month for house repair and maintenance. (4) The facility pursuant to this Section shall be provided to the functionary of a constitutional body for seven days from the date of expiry of his/her term of office. 5. Electricity, Water and Telephone Facility: (1) The connection cost and the amount required for the deposit for one telephone line installed at the residence of the Chief Functionary shall be borne by the Government of Nepal. The Government of Nepal shall bear a total of one thousand two hundred rupees per

month for electricity, water, and telephone charges payable for the connection installed at his/her residence. (2) The connection cost and the amount required for the deposit for one telephone line installed at the residence of the Functionary shall be borne by the Government of Nepal. (3) The Functionary shall be paid seven hundred rupees per month for electricity, water, and telephone charges. 6.

Vehicle and Fuel Facility: (1) For the purpose of transportation, the Chief Functionary shall be provided with one motor vehicle with a driver, one hundred fifty liters of petrol per month, and five liters of lubricating oil quarterly. (2) For the purpose of transportation, each Functionary shall be provided with one motor vehicle with a driver, one hundred liters of petrol per month, and five liters of lubricating oil quarterly. (3) A functionary of a constitutional body using his/her own private motor vehicle shall be provided with an amount equivalent to the initial level of salary of a light vehicle driver of the Government of Nepal for the driver, and petrol and lubricating oil as mentioned in Sub-section (1) or (2) which he/she is entitled to receive. (4) The repair, maintenance and grease arrangement for the motor vehicle provided pursuant to Sub-section (1) or (2) shall be as arranged by the Government of Nepal. (5) The functionary of a constitutional body shall not be required to submit bills or vouchers for petrol and lubricating oil. (6) The facility pursuant to this Section shall be provided to the functionary of a constitutional body for seven days from the date of expiry of his/her term.

Chapter-3 Daily and Travel Allowance 7. Daily and Travel Allowance: (1) While traveling within NepalOmitted by Republic Strengthening and Some Nepal Laws Amendment Act, 2066. in the course of official duties related to his/her office, a functionary of a constitutional body shall be paid daily and travel allowance as follows:- (a) Daily Allowance: One hundred sixty-five rupees per day for the Chief Functionary and one hundred forty rupees per day for the Functionary. (b) Travel Allowance: (1) When traveling on foot, twenty-five rupees per kos for the Chief Functionary and fifteen rupees per kos for the Functionary. (2) The fare payable per person when traveling by bus. (3) When traveling by train, the cost of an air-conditioned ticket where air conditioning is available, or a first-class ticket where it is not, per person for the Chief Functionary, and the cost of a first-class ticket per person for the Functionary. (4) The ticket cost per person when traveling by airplane. (5) The fare payable per person when traveling by other means of transport. (2) While traveling outside NepalOmitted by Republic Strengthening and Some Nepal Laws Amendment Act, 2066. for official work or to participate in any ceremony, festival, conference, etc. on behalf of the Government of Nepal, a functionary of a constitutional body shall be paid daily and travel allowance as follows:- (a) Daily Allowance: (1) One hundred US dollars for all Asian countries except Japan, South Korea and the Philippines.

Provided that, in the case of India, a daily allowance shall be paid in Indian currency equivalent to such convertible foreign currency.

(2) One hundred twenty-five US dollars for Japan, South Korea, the Philippines and all remaining countries.

(b) Travel Allowance: (1) When traveling by motor vehicle, the motor vehicle fare as per the bill payable per person.

(2) When traveling by train, the cost of an air-conditioned ticket where air conditioning is available, or a first-class ticket where it is not, per person for the Chief Functionary, and the cost of a first-class ticket per person for the Functionary.

(3) When traveling by airplane, the cost of a business class ticket per person for the Chief Functionary, and the cost of an economy class ticket per person for the Functionary.

(4) When traveling by waterway, the cost as per the bill payable per person.

(5) If a functionary of a constitutional body goes on an official visit outside NepalOmitted by Republic Strengthening and Some Nepal Laws Amendment Act, 2066. as a guest of a foreign state, he/she shall receive daily allowance only at half the rate of the daily allowance payable pursuant to Clause (a) of Sub-section (2) for the duration of the stay in that state. 8. Other Provisions Relating to Travel: (1) A functionary of a constitutional body shall receive half of the daily allowance for the day of return from travel, and such allowance shall be half of the minimum daily allowance payable for the place where he/she stayed on the day immediately preceding the day of return.

(2) For the payment of travel allowance, the functionary of a constitutional body shall, within thirty-five days from the date of return from travel, fill in a travel bill and provide necessary evidence such as distance proof, logbook, receipts, etc. 9. Insurance Facility and Air Departure Tax: While traveling inside or outside NepalOmitted by Republic Strengthening and Some Nepal Laws Amendment Act, 2066. in the course of official work, a functionary of a constitutional body shall be paid insurance expenses for three hundred thousand rupees and the amount payable as air departure tax. 10. Repealed by Some Nepal Laws Amendment Act, 2063. 11.

Clothing Allowance: (1) While going outside NepalOmitted by Republic Strengthening and Some Nepal Laws Amendment Act, 2066. for official work or to participate in any ceremony, festival, conference, etc. on behalf of the Government of Nepal, the Chief Functionary shall receive four thousand nine hundred fifty rupees and the Functionary shall receive four thousand two hundred rupees as clothing allowance once every three years. (2) While going outside NepalOmitted by Republic Strengthening and Some Nepal Laws Amendment Act, 2066. pursuant to Sub-section (1), if a functionary of a constitutional body is permitted to take his/her wifeAdded by Act to Amend Some Nepal Acts for Maintaining Gender Equality, 2063. or husband along, he/she shall receive, Amended by Act to Amend Some Nepal Acts for Maintaining Gender Equality, 2063.for the wife or husband, half of his/her one month's remuneration as clothing allowance once every three years. 12. Leader's Allowance: (1) When a functionary of a constitutional body goes abroad as the leader of a delegation, he/she shall receive an additional twenty-five percent of his/her daily allowance as leader's allowance. (2) Notwithstanding anything written in Sub-section (1), when a single-member delegation goes, except in circumstances specified by the Government of Nepal, leader's allowance shall not be paid. 13. Contingent Expenses: (1) While going on study tours of the ground situation in various districts of NepalOmitted by Republic Strengthening and Some Nepal Laws Amendment Act, 2066., a functionary of a constitutional body shall receive, for hospitality expenses, contingent expenses of one thousand rupees per visit, up to a maximum of twice a year, without having to submit an account of the expenditure. (2) While going outside NepalOmitted by Republic Strengthening and Some Nepal Laws Amendment Act, 2066. to participate in international conferences, festivals, ceremonies, etc., a functionary of a constitutional body shall be paid an amount as decided by the Government of Nepal for contingent expenses. Bills and receipts for contingent expenses paid in that manner shall be required to be submitted. 14. Amended by Some Nepal Acts Amendment Act, 2072.Festival Expenses: A functionary of a constitutional body shall receive an amount equivalent to his/her one month's customary remunerationAmended by Some Nepal Acts Amendment Act, 2072. as festival expenses. 15.

Leave: (1) A functionary of a constitutional body may avail the following types of leave with full remuneration:- (a) Festival Leave and Casual Leave, (b) Home Leave, (c) Sick Leave, (d) Bereavement Leave, (e) Special Leave. (2) A functionary of a constitutional body may take 6 days of Casual Leave and 6 days of Festival Leave each year. (3) A functionary of a constitutional body shall receive Home Leave at the rate of one day for every eleven days of work period. Home Leave may be accumulated up to a maximum of one hundred

fifty days. For the purpose of computing the work period for Home Leave, the days taken as Casual Leave, Festival Leave, and public holidays shall also be counted as days worked. (4) A functionary of a constitutional body who has accumulated Home Leave exceeding one hundred twenty days may, in lieu of the excess Home Leave, receive a lump sum amount calculated at the rate of his/her customary remuneration for up to a maximum of thirty days of the Home Leave accumulated up to the end of Chaitra (mid-April) each year, payable by the end of the same fiscal year. (5) A functionary of a constitutional body may receive Sick Leave at the rate of fifteen days per year. Such Sick Leave may be accumulated to any extent. If a person contracts a serious illness and submits a certificate from an approved medical practitioner, and if no Sick Leave is remaining, he/she may receive Sick Leave with remuneration for up to two months, and after exhausting such additional Sick Leave with remuneration, he/she may receive Sick Leave without remuneration for a further period of up to four months at a time, not exceeding twelve months in total during the service period.

Provided that while taking such additional Sick Leave with remuneration, Home Leave shall be deducted at the rate of one day for every two days of additional Sick Leave taken.

(6) If a functionary of a constitutional body himself/herself has to observe a period of mourning (Kiriya), he/she may take bereavement leave up to a maximum of fifteen days depending on the religious custom.

(7) A functionary of a constitutional body may receive Special Leave as follows, and such leave shall be with half remuneration:-

(a) Not exceeding one month at a time, and

(b) Not exceeding a total of three months during the entire period of service.

(8) If any person holding a constitutional position or in the service of the Government of Nepal is appointed to the position of a functionary of a constitutional body, he/she shall not be deprived of enjoying his/her right relating to accumulated leave while holding that position or in that service.

(9) If a functionary of a constitutional body retires from his/her position, he/she shall be entitled to receive a lump sum amount calculated at the rate of the remuneration he/she was receiving from the position he/she held, in lieu of the leave accumulated pursuant to Sub-section (3). 16. Authority to Grant Leave: Except for Festival Leave and Casual Leave, the other leaves mentioned in Section 15 shall be approved by the President Amended by Republic Strengthening and Some Nepal Laws Amendment Act, 2066. in the case of the Chief Functionary, and by the relevant Chief Functionary in the case of the Functionary. Chapter-4

Medical Expenses, Pension and Gratuity

17. Medical Expenses: (1) When a functionary of a constitutional body falls ill and undergoes treatment, he/she shall receive medical expenses as follows:-

(a) Expenses as per the hospital bill incurred when admitted to a hospital and treated within the country, and expenses for medicines purchased according to the prescription of the hospital doctor,

Provided that the prescription of the doctor shall mention the diagnosis of the disease.

(b) Expenses as per the bill incurred for all types of surgical operations except plastic surgery.

Provided that expenses for surgery performed in a private nursing home shall not be paid.

(c) Expenses as per the bill, as prescribed, for equipment such as spectacles, dentures, hearing aids, etc.

(2) Notwithstanding anything written in Sub-section (1), a functionary of a constitutional body shall not be paid medical expenses exceeding the amount equivalent to his/her twelve months' remuneration throughout the

total service period.

(3) If a committee of doctors appointed by the Government of Nepal recommends that medical treatment cannot be provided within Nepal Omitted by Republic Strengthening and Some Nepal Laws Amendment Act, 2066., a functionary of a constitutional body desiring to go abroad for treatment may be given additional financial assistance as deemed appropriate by the Government of Nepal, in addition to the medical expenses payable under Sub-section (1).

(4) If a functionary of a constitutional body dies before receiving the medical expenses payable under this Section, such medical expenses may be received by the person specified in Sub-section (1) of Section 19.

(5) If the spouse living jointly, mother, father, son, or daughter of a functionary of a constitutional body falls ill, the functionary of a constitutional body shall be entitled to receive, from the maximum medical expense amount payable under Sub-section (2), up to ninety percent of the medical expenses incurred as per the bill, up to half of that amount, subject to deduction from that maximum amount. While claiming such medical expenses, a doctor's prescription mentioning the diagnosis of the disease shall also be submitted. Provided that the medical expenses receivable pursuant to this Sub-section shall not exceed one month's remuneration of such functionary at a time.

(6) If the spouse, mother, father, son, or daughter living jointly with a functionary of a constitutional body falls ill and requires treatment abroad, or requires hospitalization and surgery or treatment within the country, the functionary of a constitutional body shall receive, out of the amount receivable by him/her under Sub-section (2), ninety percent of the expenses as per the hospital bill incurred and expenses for medicine and treatment as per the hospital doctor's prescription.

(7) Notwithstanding anything written in Sub-sections (5) and (6), if the spouse, mother, or father living jointly with a functionary of a constitutional body is a serving employee in a constitutional position, in government service, or in the service of an institution owned or controlled by the government, such medical expenses shall not be payable.

(8) When a functionary of a constitutional body retires, if any part of the medical expenses receivable throughout the total service period under Sub-section (2) remains unutilized, whether partially or fully, he/she shall receive, after retirement, a lump sum amount calculated as two-thirds of such remaining amount.

Only if Sick Leave is not available, he/she may claim other leave.

(10) Details of medical expenses received by a functionary of a constitutional body under this Section shall be kept in the leave records and personal records of such functionary of a constitutional body. 18. Pension or Gratuity: (1) After a person appointed to the position of a functionary of a constitutional body retires from that position, he/she shall receive pension or gratuity as follows:-

(a) If he/she has completed a service period of ten years in the position of a functionary of a constitutional body, a monthly pension equivalent to sixty-six percent of his/her monthly remuneration.

(b) If a person who is serving or has served in a constitutional position or in the service of the Government of Nepal is appointed to the position of a functionary of a constitutional body and retires from service, and if the period of service rendered previously and the period of service rendered in the position of a functionary of a constitutional body together total twenty years or more of service, he/she may choose either the monthly pension as per Clause (a) or the monthly pension calculated as follows:-

Total Service Years × Monthly Remuneration

Explanation: For the purposes of this Clause, "period of service rendered in government service" means the period of service worked in any position appointed pursuant to law by the Government of Nepal or by an organized institution receiving grants from the Government of Nepal, entitling the person to receive a pension.

(c) If, upon calculation according to Clause (a) or (b), the service period of the functionary of a constitutional body does not reach ten or twenty years, he/she shall receive a lump sum gratuity amount equivalent to the amount calculated by multiplying the number of completed years of service by his/her one and a half month's remuneration.

(2) For the purpose of calculating the pension period under Clause (a) of Sub-section (1), when calculating the period worked in the position of Chief Functionary or Functionary, or both, half of the total period worked in a constitutional position or in a government service position, or both, shall be added.

(3) If a person who has already received gratuity for service in a constitutional position or in the service of the Government of Nepal is appointed to the position of a functionary of a constitutional body, the period of service rendered previously shall be counted for the purpose of pension only if he/she repays the entire amount of gratuity received previously within one year of such appointment.

(4) The amount of gratuity receivable by a functionary of a constitutional body under this Section shall not exceed the amount of his/her twelve months' remuneration.

(5) When the remuneration of a functionary of a constitutional body is increased, two-thirds of the amount of increase in the customary remuneration shall also be added to the pension amount of the functionary of a constitutional body who is receiving a pension.

(6) If a person receiving a pension for service in a constitutional position or in the service of the Government of Nepal is appointed to the position of a functionary of a constitutional body and is also entitled to receive a pension under this Act, he/she may choose either the pension he/she was previously receiving or the pension receivable under this Act.

(7) Notwithstanding anything written in the above Sub-sections, a functionary of a constitutional body removed from the position on grounds of lack of competence, bad conduct, or failure to honestly perform his/her official duties, shall not be entitled to the facility of pension or gratuity under this Act.

19. Family Pension or Gratuity: (1) In the following circumstances, the pension or gratuity under Section 18 shall be paid, for the following durations, to the person desired by the functionary of a constitutional body among the members of his/her family, and if such desired person also dies, or if no person is desired, to the nearest entitled person among the members of his/her family:-

(a) If the functionary of a constitutional body dies while holding the position, for up to seven years from the date of death,

(b) If death occurs before the expiry of seven years from the start of receiving the pension under Section 18, for the remaining period of those seven years.

(2) If a functionary of a constitutional body dies while holding the position and is not entitled to receive a pension under Section 18 but only a gratuity, the amount of such gratuity shall be received by the person specified in Sub-section (1) among the members of the family.

(3) If a functionary of a constitutional body dies while holding the position or before the expiry of seven years from the start of receiving the pension, his/her widow or widower shall, if entitled to receive family pension under Sub-section (1), receive half of the pension from the date the pension period is paid, and if not entitled to such pension, or if death occurs after the expiry of seven years from the start of receiving the pension by the spouse, the widow or widower shall receive half of the pension for life from the date of death of the spouse.

(4) When the remuneration of a serving functionary of a constitutional body is increased, two-thirds of the amount of increase in the customary remuneration shall also be added to the family pension amount being received by a person under Sub-sections (1) and (3). Added by Act Made to Amend Some Nepal Acts Relating to Remuneration of the Chairperson and Members of the National Human Rights Commission, 2072.19A. Special Provision Relating to Remuneration of the Chairperson and Members of the National Human Rights Commission: Notwithstanding anything written elsewhere in this Act, the remuneration of the Chairperson and Members of the Human Rights Commission shall be equivalent to that of the Chief Justice of Nepal and a Judge of the Supreme Court, respectively. Chapter-5

Miscellaneous

Amended by Some Nepal Laws Amendment Act, 2063.20. Provision for Acting: (1) During the period of leave taken by a Chief Functionary, or if the position of Chief Functionary becomes vacant, the senior-most Functionary of the relevant constitutional body shall act as the Chief Functionary until such vacant position is filled.

Provided that, in the case of the Auditor General, the senior-most Deputy Auditor General of that office shall act as the Auditor General. (2) A person acting as the Chief Functionary pursuant to Sub-section (1) shall receive remuneration and facilities equivalent to those of the Chief Functionary for the entire duration of acting as such. Provided that, solely by reason of acting as the Chief Functionary, he/she shall not be entitled to facilities such as pension, gratuity, etc. for that position under this Act. Added by Republic Strengthening and Some Nepal Laws Amendment Act, 2066.20A. Calculation of Age: The age of a functionary of a constitutional body shall be calculated based on whichever of the following bases results in the earliest retirement age for him/her: (a) The age derived from the birth day or year mentioned in the academic institution certificate submitted by him/her, (b) The age derived from the birth day or year mentioned in his/her citizenship certificate, or (c) The age derived from the birth day or year written in his/her personal service record. 21. Provident Fund: The Government of Nepal shall deduct ten percent from the monthly remuneration of the functionary of a constitutional body for the provident fund, add an equal amount (one hundred percent matching contribution), and deposit it into the Employees' Provident Fund. 22. Additional Facility: (1) A functionary of a constitutional body who has completed three years without taking any leave except Casual Leave and Festival Leave shall, while going to his/her home on the Home Leave he/she has earned and returning from home, receive daily and travel allowance at half the rate of the daily and travel allowance he/she is entitled to under this Act. Provided that family members shall not receive daily and travel allowance. (2) When a functionary of a constitutional body retires from his/her position or resigns with approval, he/she shall receive, in a lump sum, salary for up to a maximum of one hundred twenty days from his/her accumulated Home Leave, and for accumulated Sick Leave, at the rate of the salary he/she was drawing at that time. In the case of death while in service, such salary, pension, or gratuity shall be received by the family member entitled to receive it. 23.

Travel Time: When a functionary of a constitutional body goes home on Home Leave and returns from home to report to his/her office after completing Home Leave, he/she shall receive travel time once a year at the

rate of one day for every eight kos of road traveled on foot, and as many days as actually required for road traveled by motor vehicle, train, or airplane. Provided that travel time shall not be given for going elsewhere or staying elsewhere instead of going home on Home Leave. Travel time shall be granted for the fastest route by the fastest means, and shall not exceed the actual days required for traveling to and from the destination. Amended by Republic Strengthening and Some Nepal Laws Amendment Act, 2066.24. Taking Oath: Before assuming his/her duties, the Chief Functionary shall take an oath of office and secrecy in front of the Chief Justice, and the Functionary shall take such oath in front of the Chief Functionary, according to the Schedule.

25. Repeal and Savings: (1) The following Acts are hereby repealed:- (a) Act relating to Remuneration, Conditions of Service and Term of Office of the Auditor General, 2023 (1966). (b) Act relating to Remuneration, Conditions of Service and Facilities of the Members of the Public Service Commission, 2026 (1969). (c) Act relating to Term of Office, Remuneration and Other Terms and Conditions of Service and Facilities of Election Commissioners, 2026 (1969). (d) Act relating to Remuneration, Conditions of Service and Facilities of the Commissioners of the Commission for the Investigation of Abuse of Authority, 2050 (1993). (2) Acts performed and actions taken under the Acts mentioned in Sub-section (1) shall be deemed to have been performed and taken under this Act. (3) Remuneration and other facilities received by a functionary of a constitutional body before the commencement of this Act shall be deemed to have been received pursuant to this Act. (4) Facilities being received by functionaries of constitutional bodies appointed before the commencement of this Act may continue to be received after the commencement of this Act as long as they remain in such position. (5) Persons who retired from the positions of Chief Commissioner and Commissioners of the Commission for the Prevention of Abuse of Authority, Auditor General, Chairperson and Members of the Public Service Commission, and Chief Election Commissioner and Election Commissioners before the commencement of this Act and are receiving a pension shall be deemed to be receiving a pension pursuant to this Act.